

HEADNOTE

“1. The review of the admissibility of an Application to amend a patent under R. 30.1 RoP shall be limited to the assessment as to whether the applicant to the amendment has actually filed an explanation regarding the requirements of Art. 84 and 123(2), (3) EPC, and not whether said explanation is sufficiently convincing in view of the assessment of the validity of the patent in its amended form, which remains to be decided when assessing said validity on the merits rather than when assessing the admissibility of such an Application.

2. As a general rule, in case of claim amendments, the entire patent description which remains unamended may be used as explanatory aid for the interpretation of a patent claim.

3. It is for the party relying on facts to prove those facts and to provide evidence that the disputed acts would amount to acts of infringement under the applicable law when assessing whether the part of a European patent outside the territories of UPCA Contracting Member States is likely infringed.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3 155 936

a juice extraction module for a juicer

KEYWORDS

Application to amend the patent

claim construction

scope of protection

international jurisdiction

territorial scope

preliminary objection

Rule 30 Application to amend the patent

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to a juice extraction module for a juicer. According to the headnotes of the decision, when reviewing whether an application to amend a patent is admissible, courts need only verify that the applicant has provided an explanation addressing the legal requirements, rather than evaluating whether that explanation is convincing or whether the amended patent will ultimately be valid. The entire patent description, even where it remains unchanged, may serve as a tool to help interpret what the amended claims actually mean. When assessing infringement of patent rights in territories outside the UPC system, the party making infringement claims must prove the facts and provide evidence demonstrating that the alleged acts constitute infringement under the applicable law.